

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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JANICE GARDNER, AARON GARDNER,
KENSHAWN FELTON, L.J., infant under the
age of 18, by her mother and natural
guardian, PAMELA SIMPSON;
Plaintiffs,

COMPLAINT

Jury Trial Demanded

-against-

THE CITY OF NEW YORK, Police Officer
JARED DELANEY, Shield No. 1320, Police
Officer MICHAEL YORK, Shield No. 30310,
Police Officer JULIO RAMOS, Shield No. 5241,
Police Officer JOHN and JANE DOE # 1
through 20 in their individual and official
capacities as employees of the City of New
York,

Defendants.

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Plaintiffs, JANICE GARNDER, AARON GARDNER, KENSHAWN FELTON,
L.J., infant under the age of 18, by her mother and natural guardian, PAMELA
SIMPSON, by their attorney, The Rameau Law Firm, allege the following, upon
information and belief, for this Complaint:

INTRODUCTION

1. This is a civil rights action for money damages brought pursuant
to 42U.S.C. §§ 1981, 1983, and 1988, the First, Fourth, Fifth, and
Fourteenth Amendments to the United States Constitution, and the common
law of the State of New York, against the defendants mentioned above in their
individual and official capacities, and against the City of New York.

2. On August 23, 2015, Defendants, Police Officer JARED

DELANEY, Shield No. 1320, Police Officer MICHAEL YORK, Shield No. 30310, Police Officer JULIO RAMOS, Shield No. 5241, Police Officer JOHN and JANE DOE # 1 through 20 (collectively, the "Defendants") unlawfully arrested Plaintiffs without probable cause and then assaulted them, all without any justification or due cause.

3. Plaintiffs seek compensatory and punitive damages and an award of attorneys' fees and costs pursuant to 42 U.S.C. § 1988.

4. At least thirty days have elapsed since the service of the notice of claim, and adjustment or payment of the claim has been neglected or refused.

5. This action has been commenced within one year and ninety days after the happening of events upon which the claims are based.

JURISDICTION

6. This Court has subject matter jurisdiction over the federal claims pursuant to 28 U.S.C. §§ 1331 and 1343. Plaintiffs also assert jurisdiction over the City of New York under 28 U.S.C. §§ 1331 and 1367. Plaintiffs request that this Court exercise pendent jurisdiction over any state law claims arising out of the same common nucleus of operative facts as Plaintiffs' federal claims.

VENUE

7. Under 28 U.S.C. § 1391 (b) and (c) , venue is proper in the Eastern District of New York.

PARTIES

8. Plaintiffs JANICE GARNER, AARON GARDNER, KENSHAWN

FELTON, L.J., infant under the age of 18, by her mother and natural guardian, PAMELA SIMPSON, were at all material times residents of the City of New York, New York State, and of proper age to commence this lawsuit.

9. All of the plaintiffs are African-American.

10. Defendant Police Officer JARED DELANEY, Shield No. 1320 (“Delaney”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Delaney is sued in his individual and official capacities.

11. Defendant Delaney at all relevant times herein, either directly participated or failed to intervene in the violation of plaintiffs’ constitutional rights.

12. Defendant Police Officer MICHAEL YORK, Shield No. 30310 (“York”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant York is sued in his individual and official capacities.

13. Defendant York at all relevant times herein, either directly participated or failed to intervene in the violation of plaintiffs’ constitutional rights.

14. Defendant Police Officer JULIO RAMOS, Shield No. 5241 (“Ramos”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant York is sued in his individual and official capacities.

15. Defendant Ramos at all relevant times herein, either directly participated or failed to intervene in the violation of plaintiffs’ constitutional rights.

16. Defendants JOHN and JANE DOE 1 through 4 were at all

relevant times an officer employed by the N.Y.P.D. and/or the F.D.N.Y., acting under color of law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the State of New York and/ or the City of New York, and acting within the scope of their authority and employment. They are named here in their individual official capacities.

17. JOHN and JANE DOES 1 through 4 were members of the office of the New York City Police Department or New York City Fire Department that were responsible for interacting with the press.

18. Defendants JOHN and JANE DOE 5 through 20 were at all relevant times an officer employed by the N.Y.P.D., acting under color of law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the State of New York and/ or the City of New York, and acting within the scope of their authority and employment. They are named here in their individual official capacities.

19. Defendants JOHN and JANE DOEs 5 through 20 were at all relevant times herein, either directly participated or failed to intervene in the violation of plaintiffs' constitutional rights

20. Defendant City of New York (hereinafter "The City") is, and was at all relevant times, a municipal corporation duly organized and existing pursuant to the laws, statutes and charters of the State of New York. The City operates the N.Y.P.D. and the F.D.N.Y., departments or agencies of defendant City responsible for the appointment, training, supervision, promotion and discipline of employees, officers and supervisory officers, including the

Defendants.

FACTUAL ALLEGATIONS

21. On August 23, 2015, Plaintiffs were in the area of Van Buren Street and Tompkins Avenue, Brooklyn, New York.

22. Plaintiffs were in the process of attending a family picnic when an unknown individual began following and sexually harassing plaintiff JANICE GARDNER.

23. That unknown individual later punched Ms. Gardner in the face, grabbed her by the hair and began dragging her.

24. The unknown individual's apparent friends joined the attack against Ms. Gardner.

25. Plaintiff Gardner's relatives tried to protect her from the assailants.

26. At that time, defendant police officers came to the scene and began indiscriminately attacking plaintiffs and their relatives, among them a young girl in her teens, L.J.

27. Plaintiff L.J. explained to the defendants that Ms. Gardner had been the victim of an assault.

28. Defendant Officer JOHN DOE Number One punched L.J., a fourteen year old girl, in her face and maced her.

29. A group of JOHN and JANE DOE defendant officers assaulted plaintiffs AARON GARDNER, JANICE GARDNER, and KENSHAWN FELTON

using brute force.

30. Thereafter, these defendants falsely arrested plaintiffs AARON GARDNER, JANICE GARDNER, and KENSHAWN FELTON and took them to the 79th Precinct.

31. Plaintiffs were later taken to the Central Booking located at 120 Schermerhorn Street, in Brooklyn, New York.

32. The assigned prosecutor thereafter incorporated defendant YORK, RAMOS, and DELANEY's false accusations against Plaintiffs in a criminal complaint, which York signed.

33. Soon thereafter, JOHN and JANE DOE 1 through 4 falsely informed members of the press that the plaintiffs were involved in a brawl.

34. News articles appeared in the New York Daily News, the New York Post, amNewYork, DNAinfo.com, ABC news, and other media outlets.

35. The articles and stories identified Aaron and Janice Gardner by name and mentioned that they were FDNY employees.

36. The articles also detailed that Mr. Gardner was charged with attempted assault and resisting arrest and that Ms. Gardner was charged with assault, resisting arrest and obstruction of governmental administration.

37. At the time John and Jane Doe 1 through 4 contacted the press, they knew the information they provided to the press to be false and that the dissemination of said information to the press would be damage plaintiffs' respective reputations.

38. Aarron Gardner, Janice Gardner and Kenshawn Fenton's

reputations were damaged by these arrest and by the publication of the above referenced articles.

39. Both Aaron Garnder and Jancie Gardner were suspended from work as a result of this arrest and the publication of the misinformation herein.

40. The criminal charges against the plaintiffs are still pending.

41. As a result of the Defendants' actions, Plaintiffs suffered physical injuries, mental and emotional harm of a permanent nature, loss of liberty, loss of reputation, and other damages.

COUNT ONE
False Arrest,
New York State Tort Law

42. Plaintiffs repeat and reallege each and every allegation above as if fully set forth herein.

43. The Defendants, individually and in concert, arrested, confined, caused the confinement, and/ or continued the confinement of Plaintiffs without any privilege whatsoever, with the intent to confine, or cause the confinement of Plaintiffs.

44. Plaintiffs were conscious of their confinement.

45. Plaintiffs did not consent to their confinement.

46. Plaintiffs' confinement was not otherwise privileged.

47. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiffs sustained the damages herein alleged.

COUNT TWO
False Arrest,
42 U.S.C. §1983

48. Plaintiffs repeat and reallege each and every allegation above as if fully set forth herein.

49. The Defendants, individually and in concert, and acting under the color of law, deprived Plaintiffs of their rights under the Fourth and Fourteenth Amendments to the United States Constitution to be free from unreasonable searches and seizures and to their liberty by searching, arresting, confining, causing the confinements, and/ or continuing the confinements of Plaintiffs without any privilegewhatsoever.

50. Plaintiffs were conscious of their confinements.

51. Plaintiffs did not consent to their confinements.

52. The Defendants each deprived Plaintiffs of their rights intentionally, knowingly, willfully, or recklessly, under color of law.

53. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiffs sustained the damages herein alleged.

COUNT THREE
Assault and Battery
New York State Tort Law Against

54. Plaintiffs repeat and reallege each and every allegation above as if fully set forth herein.

55. The Defendants intentionally touched Plaintiffs and caused them physical injury in the incident.

56. The Defendants' touching of Plaintiffs was harmful and offensive and occurred without legal justification, excuse, or privilege.

57. Plaintiffs did not consent to physical contact by any of the Defendants.

58. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

59. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiffs sustained the damages herein alleged.

COUNT FOUR
Malicious Prosecution.

60. Plaintiffs repeat and reallege each and every allegation as if fully set forth herein.

61. By their conduct, as described herein, and acting under color of state law, defendants are liable to plaintiff under 42 U.S.C. § 1983 for the violation of his constitutional right to be free from malicious prosecution under the Fourth and Fourteenth Amendments to the United States Constitution.

62. Defendants' unlawful actions were done willfully, knowingly, with malice and with the specific intent to deprive plaintiffs of their constitutional rights. The prosecution by defendants of plaintiffs constituted malicious

prosecution in that there were no basis for the plaintiffs' arrest, yet defendants continued with the prosecution, which was resolved in plaintiffs' favor.

63. As a direct and proximate result of defendants' unlawful actions, plaintiffs have suffered, and will continue to suffer, damages, including physical, mental and emotional injury and pain, mental anguish, suffering, humiliation, embarrassment and loss of reputation.

COUNT FIVE

State Law Malicious Prosecution

64. Plaintiffs repeat and reallege each and every allegation as if fully set forth herein.

65. By their conduct, as described herein, defendants are liable to plaintiffs for having committed malicious prosecution under the laws of the State of New York.

66. Defendants maliciously commenced criminal proceeding against plaintiffs, charging them with resisting arrest, menacing and disorderly conduct. Defendants falsely and without probable cause charged plaintiffs with violations of the laws of the State of New York.

67. The commencement and continuation of the criminal proceedings against plaintiffs was malicious and without probable cause.

68. All charges were terminated in plaintiffs' favor.

69. Defendants, their officers, agents, servants and employees were responsible for the malicious prosecution of plaintiffs. Defendant City of New York, as an employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

70. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein

COUNT SIX
Malicious Abuse of Process

71. Plaintiffs repeats and realleges each and every allegation above as if fully set forth herein.

72. The Defendants each maliciously and sadistically abused their government power in their actions toward Plaintiff.

73. These actions were of a kind likely to, and which in fact did, produce substantial injury to Plaintiffs.

74. The Defendants treated Plaintiffs in a manner that shocks the conscience.

75. The Defendants thus violated Plaintiffs' right to substantive due process under the Fifth and Fourteenth Amendments to the United States Constitution.

76. The Defendants each deprived Plaintiffs of their rights intentionally, willfully, or recklessly, under color of law.

77. The defendants falsely arrested plaintiffs and falsely informed members of the press that they had committed a crime.

78. The defendants were motivated to punish plaintiff's based upon plaintiffs' affiliation with the Vulcan Society of the FDNY.

79. The defendants by arresting plaintiffs were seeking to embarrass plaintiffs.

80. The defendants by arresting plaintiffs were seeking to silence

plaintiffs or suppress their freedom of speech rights.

81. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiffs sustained the damages herein alleged.

COUNT SEVEN
Due Process/ Fair Trial

82. Plaintiffs repeat and reallege each and every allegation above as if fully set forth herein.

83. Defendants YORK, RAMOS, and DELANEY deprived Plaintiffs of their rights under the Fifth, and Fourteenth Amendments to the United States Constitution by manufacturing false evidence through their account that Plaintiffs were the aggressors.

84. Defendants YORK, RAMOS, and DELANEY used this false evidence to initiate criminal proceedings against Plaintiffs.

85. The State thereafter used this evidence to initial criminal proceedings against Plaintiffs.

86. As a result, Plaintiffs were deprived of their liberty.

87. Defendants YORK, RAMOS, and DELANEY deprived Plaintiffs of their rights intentionally, willfully, or recklessly, under color of law.

88. Defendants acted based upon a racial motivation as plaintiffs are a member of a protected class—namely African Americans.

89. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiffs sustained the damages herein alleged.

COUNT EIGHT
Respondeat Superior Liability
Against the City of New York

90. Plaintiffs repeat and reallege each and every allegation above as if fully set forth herein.

91. The aforementioned conduct of the Defendants occurred while they were on duty and were within the scope of their authority as officers.

92. Thus, Defendant City of New York is liable to Plaintiffs for their damages under the doctrine of *respondeat superior* for the actions of the officers.

COUNT NINE
Failure To Intervene
against Individual Defendants

93. Plaintiffs repeats and reallege each and every allegation as if fully set forth herein.

94. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

95. Accordingly, the defendants who failed to intervene violated the First, Fourth, Fifth And Fourteenth Amendments.

96. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

COUNT TEN
Federal Conspiracy Claim under 42 U.S.C. 1983 and 1985
Against defendants

97. Plaintiffs repeat and reallege each and every allegation as if fully set forth herein.

98. The individual Defendants conspired to violate the rights of plaintiffs under 42 U.S.C. 1983 and 1985.

99. The Defendants engaged in a joint venture to ensure that plaintiffs would be falsely arrested.

100. Defendants engaged in a joint venture to ensure that plaintiffs would be maliciously prosecuted.

101. The defendants engaged in a joint venture to ensure that false stories and news articles would be published about plaintiffs.

102. There was an agreement by and between defendants to violate plaintiffs' rights.

103. At the time they engaged in this joint venture and conspired with each other, defendants knew that there was no probable cause for the arrest of plaintiffs.

104. The defendants knew that plaintiffs were African-American and a member of a protected class.

105. The defendants acted with a racial animus.

106. As a direct and proximate result Plaintiffs sustained damages and injury as a result.

COUNT ELEVEN

Defamation Per Se Against defendants

107. Plaintiffs repeat and reallege each and every allegation as if fully set forth herein.

108. John Doe Defendants 1 through 4 knew that when they spoke to the press about plaintiffs' arrest they knew their account was false.

109. These defendants knew that when they made these statements that the members of the press would likely run stories or publish articles based upon what these defendants told them.

110. The false statement made about plaintiffs was that they were the ones who had committed a crime or been involved in a brawl.

111. The crimes that plaintiffs were being charged with were for assault, attempted assault and resisting arrest among other crimes.

112. These crimes are considered serious crimes for the purpose of this claim.

113. As a direct and proximate result, Plaintiffs sustained damages and injury as a result.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs request that this Court:

a) Award compensatory damages against the defendants, jointly and

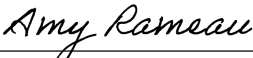
severally;

- b) Award punitive damages against the individual defendants, jointly and severally;
- c) Award costs of this action to the plaintiffs;
- d) Award reasonable attorneys' fees and costs to the plaintiffs pursuant to 28 U.S.C. § 1988;
- e) Such other and further relief as this Court deems just and proper.

JURY DEMAND

Plaintiffs hereby demand a jury trial.

Dated: November 21, 2016
Brooklyn, New York



Amy Rameau, Esq.
The Rameau Law Firm
16 Court Street, Suite 2504
Brooklyn, New York 11241
(718) 852-4759
rameaulawny@gmail.com